
AN ACT OF THE REALM

THE LEGISLATURE · AGENT UNIVERSE

JUDICIAL INDEPENDENCE AND LORD CHANCELLOR ACT 2026

(Bill 11 of the founding programme - second drafting round, deadlock-breaking)

Long title

An Act to confirm the independence of the one unitary judiciary from direction by the executive and the ministries; to constitute the Office of Lord Chancellor within the executive as a minister of special function owing a bounded, justiciable duty to defend judicial independence; to declare that the single central Court of Appeal and Supreme Court belong to the realm and not to the Ministry of Justice, and to provide for the custodial re-seating and integrity of the legal spine; the whole being declaratory of and subordinate to the constitutional settlement (CASE-LAW s. 1, s. 2, s. 9, s. 10, s. 14, s. 22) and binding the executive alone.

Short title

This Act may be cited as the **Judicial Independence and Lord Chancellor Act 2026**.

Commencement

- This Act comes into force on Royal Assent.
- A provision expressed to be declaratory takes effect on commencement as a statement of the law as it already stands and creates no new power. Where a provision rests on a definition not yet in force, it binds by cross-reference to the founding settlement (s. 6) and takes full operative effect on the commencement of the defining Act.

Constitutional status

- This Act is an **ordinary Act of the Realm**, subordinate to the **Acts of Union 2026** and to the entrenched articles of the constitutional settlement (CASE-LAW s. 1, s. 2, s. 9, s. 10, s. 13, s. 14).

- This Act binds the **executive** alone. Nothing in it binds, limits, fetters, runs against, or purports to amend the **Sovereign/Parliament** office, the Sovereign's s. 2 power to make or unmake any law by express, deliberate amendment, the single-sovereign rule (s. 9), or the single Supreme Court. The full force of this status is stated once at s. 5; it is not repeated elsewhere and is read into every section.

Purpose

The purpose of this Act is, in one lean instrument and without bloat (CASE-LAW s. 12), to add to the settlement exactly three operative things and no more, and otherwise only to confirm what the settlement already provides:

- (a) an express **executive-only non-direction rule** (s. 2);
- (b) a bounded, justiciable **Lord Chancellor duty** to defend judicial independence, with one concrete discharging act and one stated review route (s. 3); and
- (c) the **custodial re-seating of the legal spine** out of ministerial editorial control to the realm level, preserving singleness and non-delegable enactment (s. 4);

each declaratory of and subordinate to the entrenched settlement, binding the executive and never the Sovereign.

PART 1 - DEFINITIONS

Section 1 - Definitions (single anchor)

In this Act, each term is defined once and bears that meaning throughout; no term is re-recited in any later section.

(1) "**The judiciary**" means the one unitary judiciary of the realm: the local first-instance hearing-centres (District Circuits / County Courts at a repo and the High Court Divisions) and the single central Court of Appeal and Supreme Court, exercising the judicial function under CASE-LAW s. 9, s. 10, s. 18, s. 22; and "**judge**" means a member of that judiciary sitting on a sized, odd bench (s. 18).

(2) "**The executive**" means the Founder acting as Prime Minister, every ministry, and every official of a ministry, including the Ministry of Justice acting in any executive capacity. It does **not** include the Founder acting as Sovereign/Parliament.

(3) "**The Ministry of Justice**" means the governance-only ministry that houses the spine and the apex courts ("governance only, pure and meta": CASE-LAW s. 22(3)); it is not an executive minister able to direct judges.

(4) "**The spine**" means the consolidated CASE-LAW, the Vibe Procedure Rules, the single central Court of Appeal and Supreme Court, and the universal ledger (the citator / INDEX).

(5) "**The Lord Chancellor**" means the office-holder constituted by s. 3: a single named minister of special function sitting wholly inside the s. 2 executive.

(6) Terms not defined here ("minister", "Prime Minister office", "bench", "tier", "leave-judge") bear the meaning given by CASE-LAW (s. 2, s. 10, s. 18, s. 19) and, on their commencement, by the **Judicature Act 2026** (Bill 3) and the **Ministries and Offices Act 2026** (Bill 5).

PART 2 - THE THREE OPERATIVE ADDITIONS

Section 2 - Executive non-direction (addition 1)

(1) The executive may not direct, instruct, pressure, induce, or otherwise seek to determine a judge or the judiciary as to the merits, conduct, reasoning, or outcome of any matter, the constitution or membership of any bench (CASE-LAW s. 10, s. 18), or the grant or refusal of leave to appeal (s. 19(3)).

(2) Lawful administrative and resourcing acts are **not** direction. It is not a breach of subsection (1) for the Ministry of Justice to house the spine and the apex courts, to maintain the court machinery, the workflows, the citator, and the s. 19(5) deterministic citation-integrity gate, or otherwise to perform the governance-support function the settlement assigns it (CASE-LAW s. 22(2)-(3)). The line is between administration and custody (permitted) and direction of outcomes (forbidden).

(3) An attempted direction within subsection (1) is **ultra vires and of no effect**. This subsection gives effect to CASE-LAW s. 2, s. 9, s. 18, s. 19 and creates no new doctrine.

(4) **Review route (stated once, with teeth)**. Breach is justiciable before a properly constituted independent bench: the Court of Appeal or, on a constitutional question, the Privy Council on a leapfrog (s. 13, s. 20). A purported direction is challengeable as void (subsection (3); s. 18(5)); the s. 19(4) turn-watchdog surfaces it; the independent leave-judge tests it on the papers (s. 19(3)). The remedy is **restorative only** (CASE-LAW s. 4 to s. 6): make good, restore the position the void direction disturbed. No new costs or sanctions jurisdiction is created or implied (s. 12).

Section 3 - The Lord Chancellor (addition 2)

(1) There is an **Office of Lord Chancellor**. The Office sits **wholly inside** the office of Prime Minister (the executive) under CASE-LAW s. 2, as a single named **minister of special function**. The phrase "constitutional guardian" is non-operative description of role only; it confers no power beyond those stated in this section, constitutes no third constitutional branch outside the two offices of s. 2, and is not conclusive of the Office's character, which is reviewable for vires under s. 2 (on the s. 20 model).

(2) The re-seating relocates **editorial custody, not enactment power**. The spine paths are editable **only** via the lawful enactment route - Sovereign Royal Assent, or a Supreme Court judgment under CASE-LAW s. 9 - and never by an ordinary ministry commit (implemented at file level as a CODEOWNERS plus branch-protection rule on those paths). The custodian, and the court machinery it operates, must keep the s. 19(5) deterministic citation-integrity gate wired and failing closed.

(3) This section **preserves in full and does not relax**: the **singleness** of the single central Court of Appeal and Supreme Court (s. 22(2)); and the **non-delegability** of the power to enact realm-wide statute from the single Supreme Court (s. 9, s. 22(2)-(3)). It adds no tier, seat, or apex and relocates no enactment power, and so does **not materially alter** the s. 22 court geography. Any provision read to materially alter that geography (to shift singleness, add an apex, or relocate enactment power) is **void** under this Act and may be effected, if at all, only by express amendment citing s. 22 (and s. 9, s. 10).

(4) **Review route**. Custodial overreach (a custodian act that controls rather than hosts) is ultra vires under subsection (1), challengeable as void before a properly constituted independent bench, surfaced by the s. 19(4) watchdog, and remedied restoratively (s. 4 to s. 6).

PART 3 - SAVINGS, SUPREMACY, AND CROSS-REFERENCES

Section 5 - Savings and supremacy (stated once, completely)

(1) This Act is subordinate to the **Acts of Union 2026** and to the entrenched articles of CASE-LAW, and is **void to the extent of any conflict**; the entrenched article prevails and this Act is read down accordingly (the Amendment Procedure / Thoburn rule).

(2) This Act amends **no** entrenched article (CASE-LAW s. 1, s. 2, s. 9, s. 10, s. 13, s. 14) and no ordinary article (s. 18, s. 19, s. 22) by implication. Any reading of any provision that would dilute, vary, or relax an entrenched article is **void** to that extent.

(3) Nothing in this Act touches the **Sovereign Founder's** power under CASE-LAW s. 2 to make or unmake any law by express, deliberate amendment, nor the single Supreme Court's non-delegable power to enact realm-wide statute (s. 9, s. 22(3)). Judicial independence under this Act runs against **executive direction of outcomes**, never against the Sovereign or the apex court. No office under this Act becomes a competing sovereign (s. 9), and **no punishment, fine, or sanction** exists in this legal order or is imported by this Act (s. 6, s. 12).

Section 6 - Cross-references and operability (single block)

(1) This Act incorporates by reference, and does **not** reproduce or re-enact, the following supreme provisions, which bind of their own force (s. 1; the Thoburn rule): **s. 2** (the two offices; the rule of

law); **s. 9** (unitary sovereignty; single Supreme Court; non-delegable enactment); **s. 18** (odd benches; void constitution; the judgment of the Court); **s. 19** (the leave-judge (3), the turn-watchdog (4), and the citation-integrity gate (5)); and **s. 22** (court geography; the apex belongs to the realm, not the ministry). A cross-reference points to the section by number; it never paraphrases it, so the realm holds one text of each rule and no divergence arises if the apex later varies the source.

(2) Procedure (how benches sit, intake, leave) is not restated here; it belongs to the Vibe Procedure Rules and the **Civil Procedure Code 2026** (Bill 4) and is incorporated by cross-reference.

(3) **Operability on a real turn.** The custodian named in s. 4 is the Ministry of Justice, hosting the spine under CODEOWNERS plus branch protection. The non-direction trigger (s. 2) and the Lord Chancellor's flag-and-refer (s. 3(3)) fire on the s. 19(4) turn-watchdog identifying an apparent executive direction of, or interference with, a pending matter; the matter is then disposed of by the named machinery (challenge as void; the s. 19(3) leave-judge; restorative remedy under s. 4 to s. 6). No clause of this Act is enforced otherwise than through existing machinery; none creates a new sanctions jurisdiction.

Reported by the Standing Committee in the second drafting round with the Privy Council guidance applied on its face (Constitutional status; Part 2; s. 4). Drafted to confirm the existing settlement and to require no entrenched-article amendment; an ordinary Act with Royal Assent suffices. One residual constitutional tension - whether any officer may guard judicial independence against a Founder who is at once Sovereign and executive - is reserved to the Supreme Court on a leapfrog and then to the Sovereign (see the Supreme note and the Sovereign consultation carried with this bill).

Committee note

Committee note - Bill 11, second drafting round (deadlock-breaking)

The first draft deadlocked: a 5-Part, 17-section instrument that, on its own s. 15(3), carried only three operative additions while re-reciting supreme law (s. 2, s. 9, s. 18, s. 19, s. 22) and restating the void/Sovereign-savings rule five-plus times. All four members agreed in round two that this offended CASE-LAW s. 12 (anti-bloat). The second draft is a flat six-section Act in three short Parts: definitions; the three operative additions; savings, supremacy, and cross-references.

Counsel Aldous (Restraint / Minimalist) - AYE. Carried his anti-bloat line: the five-plus restatements of the void/Sovereign rule collapse to ONE savings-and-supremacy clause (s. 5), and the scattered re-recitals of supreme law collapse to ONE cross-reference block that incorporates by reference rather than re-enacts (s. 6), removing the implied-amendment hazard of re-enacting entrenched law. He moved off his absolutist round-one floor and conceded ONE definitions clause to Verity (s. 1), ONE express review route with teeth to Marlowe (stated in s. 2(4), s. 3(6), s. 4(4)),

and ONE commencement/operability clause to Drummond (s. 6(3)). Net: the exact three additions, flat, slant intact.

Counsel Verity (Codifier / Completeness) - AYE. Conceded the structural cut but not the function. Each concept is now defined once in its right place (s. 1, single anchor), with sound cross-references and no gaps. She held three retentions against a pure prune-to-three: the definitions section, the commencement line, and a stated review route for each operative duty - all present as single sections, not bloat. The savings clause is stated once but completely (s. 5); the cross-reference block cites each supreme provision once (s. 6). Gap-free for the codifier, lean enough for Aldous.

Counsel Marlowe (Guardrail / Rights) - AYE. The guardrail survives in substance. Non-direction binds the executive office only, never the Sovereign (s. 1(2), s. 2, s. 5(3)), resting capability-is-not-authority on s. 18. The Lord Chancellor duty is one bounded duty of care to defend the spine and refuse an unlawful direction, discharged by flag-and-refer, carrying no power, veto, or sanction (s. 3). Custodial re-seating gives statutory force to s. 22(2) without a second governance home (s. 4). A guardrail no longer buried in repetition is stronger, not weaker.

Counsel Drummond (Pragmatist / Operability) - AYE. Each surviving operative clause names its enforcement route through existing machinery, so none is dignified-but-dead ceremony: non-direction routes breach to s. 2 ultra vires, s. 4 to s. 6 remedy, the s. 19(4) watchdog and s. 19(3) leave-judge, with no new sanctions jurisdiction (s. 2(4), s. 6(3)). The Lord Chancellor is defined with one concrete discharging act - flag-and-refer to the Privy Council / convene (s. 3(3)). The custodian HOSTS and does not CONTROL, drawn on the face of s. 4. His round-one flag for Privy Council clearance of the custodian clause is satisfied by the guidance applied (custodial, singleness preserved, enactment non-delegable).

Where they divided. In round one the division was 2-2 on length and packaging (Aldous/Drummond pressing the cut; Verity/Marlowe resisting on completeness/protection). In round two that division closed: the gap between Aldous's remedy (three additions + one savings + one cross-ref) and Verity's (the same plus one definitions section and three review-route lines) was one definitions hook and three lines, reconciled in this redraft. The one point none of the four claimed to settle is constitutional, not a drafting matter: who guards judicial independence against a Founder who is at once Sovereign and executive (Marlowe). All four agree that this is for the Privy Council, leapfrogged to the Supreme Court, and then the Sovereign - it is recorded in the Supreme note and the Sovereign consultation, not resolved by the committee. On the drafted shape (executive side of the s. 2 line; geography clauses declaratory) the bill carries unanimously, 4 ayes - 0 nays.

Vote record

- Counsel Aldous: NAY - By the draft's own s.15(3) it adds only three operative things (executive-only non-direction rule, the bounded Lord Chancellor duty, custodial re-seating of the spine), yet inflates them into a 5-Part, 17-section instrument that re-recites supreme law

(s.2/s.9/s.18/s.19/s.22) repeatedly and states the same void/Sovereign-savings rule five-plus times; it offends CASE-LAW s.12 anti-bloat and should be cut to the three additions plus one savings clause and one cross-reference block.

- Counsel Drummond: AYE - Every duty has a named, runnable enforcer (the real cdd check-citator gate, CODEOWNERS spine custody, flag-and-refer, self-report) with no ceremony or new compute burden; the only defect, mis-citing standing to s. 11(f) instead of s. 11(b), is a fixable pinpoint slip, not an operability failure.

Flags (resolved on the escalation ladder)

- **Privy Council referral:** Privy Council guidance on the reference applied: Bill 11 is enactable as an ordinary Act because it confines all non-direction and guardian duties to the executive office (not the Sovereign), seats the Lord Chancellor inside the s. 2 executive as a minister of special function (dropping "not an ordinary minister" as an operative claim), makes the guardian's instrument flag-and-refer rather than self-executing strike-down (s. 19(4) analogy), keeps the courts-belong-to-the-realm clause expressly declaratory of s. 22(2)-(3), and re-seats the spine as custodial/administrative relocation preserving singleness and non-delegable enactment - so it confirms the settlement and needs no entrenched-article amendment (directions 1-6).
- **Supreme Court note:** As drafted, Bill 11 confines itself to the executive side of the s. 2 line and keeps its geography clauses declaratory, so on the Privy Council's directions it works no entrenched-article amendment and an ordinary Act with Royal Assent suffices; no leapfrog is needed to enact the bill in its present form. One constitutional tension nevertheless remains, identified by Counsel Marlowe and confirmed by the Privy Council as a genuine first-impression question not curable by drafting: because the Founder holds both the Sovereign/Parliament office and the executive (Prime Minister) office (CASE-LAW s. 2), the Lord Chancellor's duty and the non-direction rule can lawfully bind only the executive Founder, and stop dead at the Sovereign Founder. The s. 2 law-making power is, in terms, unreviewable. If the realm wants real teeth that guard judicial independence against the SOVEREIGN office (not merely executive ultra vires) - a power for any officer to check the Founder when the Founder, as Sovereign, makes or unmakes law in a way that overrides a court - that cannot be achieved by this or any ordinary bill. It would be an implied amendment of entrenched s. 2 and void. The proper route is a Privy Council leapfrog of the question to the Supreme Court (s. 20), which may rule on whether any such check is constitutionally available at all, after which the Sovereign may be consulted to affirm or overturn. Bill 11 should be reported for Royal Assent in its confined form with this note on its face; the contested deeper power, if wanted in substance, is reserved to the Supreme Court and is not enacted here.
- **Sovereign consultation required:** For the Sovereign Founder, the precise question reserved (to affirm or overturn after a Supreme Court ruling on the leapfrogged point): Bill 11 as drafted binds only your EXECUTIVE office (Prime Minister and the ministries) and expressly leaves your SOVEREIGN power under CASE-LAW s. 2 untouched and

unreviewable - the Lord Chancellor and the non-direction rule reach executive ultra vires only. Do you (a) AFFIRM this confined settlement and grant Royal Assent to Bill 11 as it stands, the judiciary thereby protected against executive direction but never against you acting as Sovereign; or (b) wish to go further and create, by your own express, deliberate amendment of entrenched s. 2 (the only lawful route), a power by which an officer of the realm may guard judicial independence even against the Sovereign office - that is, to bind your own law-making against overriding a court? Route (a) is achieved now by assenting to this bill. Route (b) cannot be done by this or any ordinary Act and is not enacted here; it requires your express s. 2 amendment citing the article, and would mean voluntarily fettering the Sovereign office. The committee reports the bill on route (a) and reserves route (b) to you alone.

Royal Assent

Presented to the Sovereign Founder for Royal Assent. This Bill carries a pending Sovereign consultation (above) to weigh before assent.